PUBLIC INTEREST LITIGATION, 1979

SUPREME RIGHT TO BE HEARD

The PIL has come as a boon to the disadvantaged, with the Supreme Court opening its doors for them. And while it has evolved as a powerful tool for social reform and government accountability, it has also become prone to misuse, which too the court has duly taken heed of

BY KAUSHIK DEKA

Inside the crumbling walls of Bihar's overcrowded jails in the 1970s, tens of thousands of forgotten souls waited—not for justice, but for time to swallow them whole. They were under-trials, prisoners held for years, even decades, without getting their day in court, stripped of dignity and hope. Kapila Hingorani, a feisty young lawyer, armed only with a petition and an unyielding sense that justice must prevail, brought their plight to the Supreme Court. Justice P.N. Bhagwati listened. In a groundbreaking 1979 judgment, the court ruled that the right to a speedy trial was fundamental. Over 40,000 prisoners walked free across India, and their liberation etched the concept of the Public Interest Litigation (PIL) into India's judicial ethos, redefining the concept of access to justice. Designed to open the doors of the court to the marginalised and the disadvantaged communities, the PIL has evolved into a powerful tool for social reform, promoting justice and accountability.

1.2 MILLION
PILs filed in the Supreme Court between 1985 and October 2023

The roots of the PIL lie in the landmark *Mumbai Kamagar Sabha vs. Abdul Bhai* judgment in 1976 when the Supreme Court recognised the importance of addressing collective societal issues and questioned the restrictive 'locus standi' rule, which limited court access to directly affected parties (the case revolved around whether a trade union could file a legal suit in its name for the benefit of workers).

Visionary judges like P.N. Bhagwati and V.R. Krishna Iyer championed the concept to address systemic injustices. In the landmark *S.P. Gupta vs Union of India* (1981) case, Justice Bhagwati expanded locus standi, allowing public-spirited citizens to bring issues affecting marginalised groups to the court. Since then, the PIL has democratised justice, bringing courts closer to ordinary citizens and enforcing principles embedded in the Directive Principles of State Policy. It has tackled issues like bonded labour, gender justice and environmental protection, enabling citizens and organisations to advocate



"I fathered social action litigation in India. I made mincemeat of locus standi as it was anathema to justice reaching the poor and underprivileged. And I was proud of it"

—JUSTICE P.N. BHAGWATI
Former Chief Justice of India